

VCU304732 Cruz. et al., v. Monrovia Nursery Company

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-27

Motion: Motion to Amend Complaint to Add Class Representatives

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Re: Cruz. et al., v. Monrovia Nursery Company

Case No.: VCU304732

Date: August 27, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion to Amend Complaint to Add Class Representatives

Tentative Ruling: To grant the motion; to order Plaintiff to file the proposed amended complaint no later than ten (10) days from the date of this hearing; to require counsel to appear at this hearing as to the setting of a deadline to file the motion for class certification pursuant to California Rule of Court, rule 3.764(b); Counsel may appear in any manner.

Facts

In this class action matter, filed initially by Plaintiffs Cruz and Korey, Defendant has settled with a number of class representatives resulting in the addition of new class representatives and multiple amended complaints, only to be followed by further rounds of settling with these newly named class representatives. As it stands, the current class representatives are Eliseo Ureno, Serapio Castellanos and Jaime Martinez.

Plaintiffs now bring this motion to amend the complaint to add class representatives, noting that Defendant, via counsel, indicates that Plaintiffs Serapio Castellanos and Jaime Martinez have settled their claims and are no longer suitable as class representatives. The Court will not take on this issue on Plaintiff's motion.

Plaintiffs seek to add Liliana Raya Torres as class representative.

In opposition, Defendant argues Plaintiff has delayed this amendment, and prosecution of this case, that Defendant has suffered prejudice and that no class certification hearing has been set.

Authority and Analysis

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296 [“There is a strong policy in favor of liberal allowance of amendments.”].) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court.

Rule 3.1324 regulates the content of the motion and supporting declaration as follows:

“(a) Contents of motion

A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.”

Here, subsection (a) is complied with via the attached redlined proposed amended complaint and description in the motion of the proposed changes. Additionally, the declaration of counsel complies with subsection (b). The effect of the amendment is to name new representative plaintiffs. The amendment is necessary because Defendants indicate that some of the current class representatives have settled their claims and have terminated their relationship with counsel.

Additionally, seeking leave on the basis noted above appears proper under *Pirjada v. Sup. Ct.* (2011) 201 Cal.App.4th 1074:

“By the time the motion was filed, the court had already chosen other means to protect the absent class members—it gave Westrup Klick leave to amend the complaint after using informal means to identify potential replacement class representatives” (Id. at 1087.)

Even where a plaintiff has been dilatory in bringing the motion, the Court should not deny the motion unless the opposing party can show prejudice. (*Kittredge Sports Company v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048.)

Prejudice exists where amendment would: (1) cause a delay of trial; (2) increase preparation costs; (3) change the focus of the complaint; or (4) increase discovery burdens. (*Magpali*, supra, 48 Cal.App.4th 471, 486-488.) Additional discovery costs may support a claim for prejudice. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739 [“Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens.”].)

Here, there is no current trial date, there is no increase to preparation costs, there is no change to the focus of the complaint and there is no discussion of increased discovery burdens.

Therefore, the Court grants the motion. The Court orders the proposed amended complaint filed no later than ten (10) days from the date of this hearing.

However, the Court will hear argument as to establishing a deadline for filing the motion for class certification. (California Rule of Court, rule 3.764(b).) Defendant indicates it has produced policies and procedures, documents showing employee practices, and wage statements/personnel files.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.